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**THE CONSTITUTION (FIFTH
AMENDMENT) BILL, 1955**

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(AS INTRODUCED IN LOK SABHA)

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A

BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Sixth Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Fifth Amendment) Act, 1955. Short title.

5 2. In article 3 of the Constitution, for the proviso, the following Amendment,
proviso shall be substituted, namely:— of article 3.

10 “Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States specified in Part A or Part B of the First Schedule, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference.”

15 3. (1) In article 100 of the Constitution,—

Amendment
of articles
100 and 189.

(a) in clause (3), for the words “Until Parliament by law otherwise provides”, the words “Save as otherwise provided by rules regulating the procedure of the House” shall be substituted; and

20 (b) clause (4) shall be omitted.

(2) In article 189 of the Constitution,—

(a) in clause (3), for the words "Until the Legislature of the State by law otherwise provides", the words "Save as otherwise provided by rules regulating the procedure of the House" shall be substituted; and

(b) clause (4) shall be omitted.

Amendment
of articles
101, 103, 190
and 192.

4. (1) In article 101 of the Constitution, in clause (3), sub-clause (a) and the brackets and letter "(b)" shall be omitted.

(2) For article 103 of the Constitution, the following article shall be substituted, namely:—

Decision on
question as
to disquali-
fications of
members.

"103. (1) If it is represented to the Chairman or the Speaker that a member of the Council of States or, as the case may be, of the House of the People is disqualified for being such a member under the provisions of article 102, or was so disqualified at any time since being chosen as such member, and the member does not admit that he is or was so disqualified, the question shall be referred to the Election Commission for decision, and its decision shall be final:

Provided that where the disqualification in question arises from circumstances which subsisted at the time of his being chosen as such member, no such representation as aforesaid shall be entertained—

(a) unless it is made after the expiration of the period prescribed by law for presenting an election petition calling in question the election of the member, and

(b) if such an election petition is pending or has been tried, unless the Chairman or Speaker, as the case may be, is satisfied that the question of the member's disqualification by reason of those circumstances has not been raised, or as the case may be was not raised, in the proceedings on the election petition.

(2) Where on a representation made under clause (1) the member admits that he is or was disqualified under the provisions of article 102, or where on a reference made under that clause the Election Commission decides that the member is or was so disqualified, his seat shall thereupon become vacant."

(3) In article 190 of the Constitution, in clause (3), sub-clause (a) and the brackets and letter "(b)" shall be omitted.

(4) For article 192 of the Constitution, the following article shall be substituted, namely:—

5 “192. (1) If it is represented to the Speaker or the Chairman that a member of the Legislative Assembly or, as the case may be, of the Legislative Council of a State is disqualified for being such a member under the provisions of article 191, or was so disqualified at any time since being chosen as a member, and the member does not admit that he is or was so disqualified, the question shall be referred to the Election Commission for decision, and
10 its decision shall be final:

Decision on questions as to disqualifications of members.

Provided that where the disqualification in question arises from circumstances which subsisted at the time of his being chosen as such member, no such representation as aforesaid shall be entertained—

15 (a) unless it is made after the expiration of the period prescribed by law for presenting an election petition calling in question the election of the member, and

20 (b) if such an election petition is pending or has been tried, unless the Speaker or Chairman, as the case may be, is satisfied that the question of the member's disqualification by reason of those circumstances has not been raised, or as the case may be was not raised, in the proceedings on the election petition.

25 (2) Where on a representation made under clause (1) the member admits that he is or was disqualified under the provisions of article 191, or where on a reference made under that clause the Election Commission decides that the member is or was so disqualified, his seat shall thereupon become vacant”.

30 5. (1) In article 148 of the Constitution, to clause (4), the following *Explanation* shall be added, namely:—

Amendment of articles 148 and 319.

“*Explanation.*—For the purposes of this clause, the office of a Minister for the Union or for a State shall not be deemed to be an office either under the Government of India or under the Government of a State”.

35 (2) In article 319 of the Constitution,—

(a) for the word “employment” wherever it occurs, the word “office” shall be substituted; and

(b) the following *Explanation* shall be added at the end, namely:—

40 “*Explanation.*—For the purposes of this article, the office of a Minister for the Union or for a State shall not be deemed

to be an office either under the Government of India or under the Government of a State.”.

Amendment
of article
276.

6. In article 276 of the Constitution, in clause (2), for the words “two hundred and fifty rupees” wherever they occur, the words “one thousand rupees” shall be substituted.

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Amendment
of article
297.

7. In article 297 of the Constitution, after the words “territorial waters”, the words “or the continental shelf” shall be inserted.

Amendment
of article
311.

8. In article 311 of the Constitution, for clauses (2) and (3), the following clauses shall be substituted, namely:—

“(2) No such person as aforesaid shall be dismissed or removed except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of defending himself: 10

Provided that this clause shall not apply—

(a) where a person is dismissed or removed on the ground of conduct which has led to his conviction on a criminal charge; or 15

(b) where the authority empowered to dismiss or remove a person is satisfied that for some reason to be recorded by that authority in writing it is not reasonably practicable to hold such inquiry; or 20

(c) where the President or Governor or Rajpramukh, as the case may be is satisfied that in the interest of the security of the State it is not expedient to hold such inquiry; or

(d) where the person to be dismissed or removed belongs to any such class of employees in a commercial or industrial establishment of the Union or of a State as the President, Governor or Rajpramukh, as the case may be, may by order specify in this behalf. 25

(3) If in respect of any such person as aforesaid a question arises whether it is reasonably practicable to hold such an inquiry as is referred to in clause (2), the decision thereon of the authority empowered to dismiss or remove such person shall be final.”. 30

Amendment
of article
316.

9. In article 316 of the Constitution, after clause (1), the following clause shall be inserted, namely:—

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“(1A) If the office of Chairman of a Commission becomes vacant or if any such Chairman is by reason of absence or for any other reason unable to perform the duties of his office, those duties shall, until some person appointed under clause (1) to the

vacant office has entered on the duties thereof or, as the case may be, until the Chairman has resumed his duties, be performed by such one of the other members of the Commission as the President, in the case of the Union Commission or a Joint Commission, and the Governor or Rajpramukh of the State in the case of a State Commission, may appoint for the purpose.” 5

STATEMENT OF OBJECTS AND REASONS

This Bill seeks to amend certain provisions of the Constitution for the reasons indicated below.

Clause 2.—Under the proviso to article 3 of the Constitution, no Bill for the purpose of forming a new State, increasing or diminishing the area of any State or altering the boundaries or name of any State can be introduced in Parliament unless the views of the State Legislatures concerned with respect to the provisions of the Bill have been ascertained by the President. It is desirable that there should be provision that when the States concerned are consulted the President should be enabled to prescribe the time within which the State should convey to the President their views in the matter. It is for this purpose that it is proposed to amend the proviso to article 3 of the Constitution. The intention of the proviso is only to ensure that the Legislatures of all the States affected by a reorganisation proposal have a reasonable opportunity of expressing their views.

Clause 3.—Articles 100 and 189 of the Constitution contain provisions in regard to the quorum of either House of Parliament and either House of a State Legislature which in practice have been found to be unduly rigid. In particular, clause (4) of each of these two articles, which imposes a duty on the Chairman or Speaker or the person acting as such either to adjourn the House or to suspend the meeting whenever there is no quorum, has given rise to practical difficulties. It does not seem necessary to have such detailed and rigid provisions in the Constitution itself for regulating quorum. It should be sufficient to indicate that the quorum would normally be one-tenth of the total membership of the House and leave the rest to be regulated by rules of procedure of the House. Clause 3 of the Bill seeks to amend articles 100 and 189 accordingly.

Clause 4.—The decision of the Supreme Court in *Election Commission vs. Saka Venkata Rao* (1953 S.C.R. 114) that articles 190 (3) (a) and 192 (1) of the Constitution are applicable only to disqualifications to which a member “becomes subject” after he has been elected as such, leads to an anomalous position. Where a candidate under a disqualification gets elected and no election petition is lodged against him, he can continue as a member despite the mandatory provision in article 102(1) or, as the case may be, article 191 (1) that he shall be disqualified, not only for being chosen as, but also for being, a member.

Articles 103 and 192 refer vaguely to questions arising as to whether a member has become subject to a disqualification without indicating how or before whom the question has to be raised and the proper method for referring the question for the decision of the

President or the Governor. Although these articles appear to make the President and the Governor the deciding authorities, they have to obtain the opinion of the Election Commission and give their decision according to that opinion. This appears to be an unnecessarily round-about method. The necessity for bringing in the Head of State into disputes of this type is not at all clear. As a matter pertaining to the due constitution of a House of the Legislature it would be more appropriate for the question to be raised before the Speaker or Chairman and then referred to the Election Commission for decision.

In order to remove these anomalies and difficulties, it is proposed in clause 4 of the Bill to omit sub-clause (a) of article 101 (3) and sub-clause (a) of article 190 (3) and to revise articles 103 and 192.

Clause 5.—Articles 148(4) and 319 render respectively the Comptroller and Auditor-General and the Chairman and members of Public Service Commissions ineligible for further office either under the Government of India or under the Government of any State. Since these two articles do not contain an explanation on the lines of articles 102(2) and 191(2), the inference is that the prohibition extends to the office of a minister for the Union or for a State. It is considered that there should be no bar to the Comptroller and Auditor-General or a member of a Public Service Commission having a political career after retirement and becoming a minister. It is accordingly proposed to insert explanations in articles 148(4) and 319 on the same lines as those contained in articles 102(2) and 191(2).

Clause 6.—Article 276(2) provides that the total amount payable in respect of any one person to the State or to any one local authority by way of taxes on professions, trades, callings and employments shall not exceed Rs. 250 per annum. The State Governments and local bodies have been finding this limit to be too low. The Local Finance Enquiry Committee in 1951 and the Taxation Enquiry Commission this year have both recommended raising this limit. It is accordingly proposed to amend article 276(2) raising the limit to Rs. 1,000.

Clause 7.—India's sovereign rights under international law over the sea-bed and sub-soil of the continental shelf adjoining its territory and beyond its territorial waters have recently been asserted in a President's proclamation. As a corollary to this assertion it is necessary to provide in the Constitution that this sea-bed and all things of value underlying it vest in the Union in the same way as all lands, minerals and other things of value underlying the

ocean within the territorial waters by virtue of article 297. It is accordingly proposed to amend that article by referring to the continental shelf of India along with the territorial waters of India.

Clause 8.—Article 311(2) provides that no civil servant shall be dismissed or removed or reduced in rank until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him. This has been interpreted by the courts as providing the civil servant an additional statutory opportunity after a definite conclusion has been reached as to the actual punishment proposed to be inflicted on him. Thus, in practice, two opportunities have to be given at two different stages of the departmental inquiry which consequently becomes a long-drawn affair.

Secondly, the article extends, not only to dismissal and removal from service, but also to reduction in rank. This latter expression has been interpreted differently by different authorities and courts. Furthermore, there does not seem to be sufficient justification for placing reduction in rank on a par with the much more severe punishments of dismissal and removal from service and given a special Constitutional safeguard.

Thirdly, a large number of persons are employed in the commercial and industrial establishments of the Central Government, as well as of the State Governments. Being technically civil servants these persons are entitled to the protection of this article in addition to the privileges they enjoy under the general labour laws. Since this is not conducive to the maintenance of proper discipline and efficient administration, it is considered that there should be power to exclude specified categories of commercial or industrial employees of Government from the purview of the article.

It is accordingly proposed in clause 8 to revise clauses (2) and (3) of article 311.

Clause 9.—There is no provision in article 316 for the appointment of an acting Chairman of a Public Service Commission when that office is vacant or when the permanent Chairman is on leave or otherwise unable to perform the duties of his office. It is, therefore, proposed in clause 9 to insert a clause in article 316 providing for the appointment of an acting Chairman in those circumstances.

C. C. BISWAS.

NEW DELHI;

The 18th November, 1955.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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PART I

THE UNION AND ITS TERRITORY

* * * * *

3. Parliament may by law—

- (a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;
- (b) increase the area of any State;
- (c) diminish the area of any State;
- (d) alter the boundaries of any State;
- (e) alter the name of any State:

Formation of new States and alteration of areas, boundaries or names of existing States.

Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the boundaries of any State or States specified in Part A or Part B of the First Schedule or the name or names of any such State or States, the views of the Legislature of the State or, as the case may be, of each of the States both with respect to the proposal to introduce the Bill and with respect to the provisions thereof have been ascertained by the President.

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PART V

THE UNION

CHAPTER II.—PARLIAMENT

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100.

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(3) Until Parliament by law otherwise provides, the quorum to constitute a meeting of either House of Parliament shall be one-tenth of the total number of members of the House.

Voting in Houses, power of Houses to act notwithstanding vacancies and quorum.

(4) If at any time during a meeting of a House there is no quorum, it shall be the duty of the Chairman or Speaker, or person acting as such, either to adjourn the House or to suspend the meeting until there is a quorum.

Disqualifications of members

Vacation of
seats. 101.

* * * * *

(3) If a member of either House of Parliament—

(a) becomes subject to any of the disqualifications mentioned in clause (I) of article 102, or

(b) resigns his seat by writing under his hand addressed to the Chairman or the Speaker, as the case may be.

his seat shall thereupon become vacant.

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Decision on
questions as
to disqualifi-
cations of
members.

103. (1) If any question arises as to whether a member of either House of Parliament has become subject to any of the disqualifications mentioned in clause (I) of article 102, the question shall be referred for the decision of the President and his decision shall be final.

(2) Before giving any decision on any such question, the President shall obtain the opinion of the Election Commission and shall act according to such opinion.

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Comptroller
and Auditor-
General of
India.

148.

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(4) The Comptroller and Auditor-General shall not be eligible for further office either under the Government of India or under the Government of any State after he has ceased to hold his office.

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PART VI

THE STATES IN PART A OF THE FIRST SCHEDULE

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Voting in
Houses,
power of
Houses to
act notwith-
standing
vacancies
and quorum.

189.

* * * * *

(3) Until the Legislature of the State by law otherwise provides, the quorum to constitute a meeting of a House of the Legislature of a State shall be ten members or one-tenth of the total number of members of the House, whichever is greater.

(4) If at any time during a meeting of the Legislative Assembly or the Legislative Council of a State there is no quorum, it shall be

the duty of the Speaker or Chairman, or person acting as such, either to adjourn the House or to suspend the meeting until there is a quorum.

* * * * *

190.

Vacation of
seats.

* * * * *

(3) If a member of a House of the Legislature of a State—

(a) becomes subject to any of the disqualifications mentioned in clause (I) of article 191; or

(b) resigns his seat by writing under his hand addressed to the Speaker or the Chairman, as the case may be,

his seat shall thereupon become vacant.

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192. (1) If any question arises as to whether a member of a House of the Legislature of a State has become subject to any of the disqualifications mentioned in clause (I) of article 191, the question shall be referred for the decision of the Governor and his decision shall be final.

Decision on
questions as
to disqualifi-
cations of
members.

(2) Before giving any decision on any such question, the Governor shall obtain the opinion of the Election Commission and shall act according to such opinion.

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PART XII

FINANCE, PROPERTY, CONTRACTS AND SUITS

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276.

Taxes on
professions,
trades call-
ings and em-
ployments.

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(2) The total amount payable in respect of any one person to the State or to any one municipality, district board, local board or other local authority in the State by way of taxes on professions, trades, callings and employments shall not exceed two hundred and fifty rupees per annum:

Provided that if in the financial year immediately preceding the commencement of this Constitution there was in force in the case of any State or any such municipality, board or authority a tax on professions, trades, callings or employments the rate, or the maximum rate, of which exceeded two hundred and fifty rupees per

annum, such tax may continue to be levied until provision to the contrary is made by Parliament by law, and any law so made by Parliament may be made either generally or in relation to any specified States, municipalities, boards or authorities.

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Things of value lying within territorial waters to vest in the Union. **297.** All lands, minerals and other things of value underlying the ocean within the territorial waters of India shall vest in the Union and be held for the purposes of the Union.

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PART XIV

SERVICES UNDER THE UNION AND THE STATES

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Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a State. **311.** (1) No person who is a member of a civil service of the Union or an all-India service or a civil service of a State or holds a civil post under the Union or a State shall be dismissed or removed by an authority subordinate to that by which he was appointed.

(2) No such person as aforesaid shall be dismissed or removed or reduced in rank until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him:

Provided that this clause shall not apply—

- (a) where a person is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge;
- (b) where an authority empowered to dismiss or remove a person or to reduce him in rank is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to give to that person an opportunity of showing cause; or
- (c) where the President or Governor or Rajpramukh, as the case may be, is satisfied that in the interest of the security of the State it is not expedient to give to that person such an opportunity.

(3) If any question arises whether it is reasonably practicable to give to any person an opportunity of showing cause under clause (2), the decision thereon of the authority empowered to dismiss or remove such person or to reduce him in rank, as the case may be, shall be final.

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319. On ceasing to hold office—

- (a) the Chairman of the Union Public Service Commission shall be ineligible for further employment either under the Government of India or under the Government of a State;
- (b) the Chairman of a State Public Service Commission shall be eligible for appointment as the Chairman or any other member of the Union Public Service Commission or as the Chairman of any other State Public Service Commission, but not for any other employment either under the Government of India or under the Government of a State;
- (c) a member other than the Chairman of the Union Public Service Commission shall be eligible for appointment as the Chairman of the Union Public Service Commission or as the Chairman of a State Public Service Commission, but not for any other employment either under the Government of India or under the Government of a State;
- (d) a member other than the Chairman of a State Public Service Commission shall be eligible for appointment as the Chairman or any other member of the Union Public Service Commission or as the Chairman of that or any other State Public Service Commission, but not for any other employment either under the Government of India or under the Government of a State.

Prohibition
as to the
holding of
offices by
members of
Commission
on ceasing
to be such
members.

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LOK SABHA

A
BILL

further to amend the Constitution of India.

(Shri C. C. Biswas, Minister of Law)